1. Any overseas citizen of India cardholder can make a declaration renouncing his/her overseas citizen of India cardholder status. After that declaration is registered by the Central Government, such person ceases to be an overseas citizen of India cardholder.

2. Where a person ceases to be an overseas citizen of India cardholder, the spouse of foreign origin of that person (who has obtained overseas citizen of India card) and every minor child of that person (registered as an overseas citizen of India cardholder) also ceases to be an overseas citizen of India cardholder.

IV. Cancellation of Registration as Overseas Citizen of India Cardholder

The Central Government may cancel the registration of a person as an overseas citizen of India cardholder, if it is satisfied that—

1. the registration as an overseas citizen of India cardholder was obtained by means of fraud, false representation or the concealment of any material fact; or

2. the overseas citizen of India cardholder has shown disaffection towards the Constitution of India; or

3. the overseas citizen of India cardholder has, during any war in which India may be engaged, unlawfully traded or communicated with an enemy; or

4. the overseas citizen of India cardholder has, within five years after registration, been sentenced to imprisonment for a term of not less than two years; or

5. the overseas citizen of India cardholder has violated the provisions of the Citizenship Act (1955) or the provisions of any other law as may be specified by the Central Government. This provision was added by the Citizenship (Amendment) Act, 2019; or

6. it is necessary so to do in the interests of the sovereignty and integrity of India, the security of India, friendly relations of India with any foreign country, or in the interests of the general public; or

7. the marriage of an overseas citizen of India cardholder—

    1. has been dissolved by a competent court of law or otherwise; or

    2. has not been dissolved but (during the subsistence of such marriage) he/she has solemnised marriage with any other person.

However, before the cancellation of his/her registration as an overseas citizen of India cardholder, he/she will be given a reasonable opportunity of being heard. This provision was also added by the Citizenship (Amendment) Act, 2019.

Table 7.1 Comparing NRI, PIO and OCI Cardholder[11]